NATIONAL COMPANY LAW TRIBUNAL
SPECIAL BENCH – II
CHENNAI

[1]

ATTENDANCE CUM ORDER SHEET OF THE HEARING OF CHENNAI BENCH, CHENNAI NATIONAL COMPANY LAW TRIBUNAL, HELD ON 17-03-2022 AT 10:30 A.M THROUGH VIDEO CONFERENCING:

PRESENT: JUSTICE RAMALINGAM SUDHAKAR, HON'BLE PRESIDENT
SHRI B. ANIL KUMAR, MEMBER (TECHNICAL))

APPLICATION NUMBER	: CP(CAA)/33(CHE)2022
PETITION NUMBER	: CA(CAA)/38(CHE)2021
NAME OF THE PETITIONER	: Harsha Cars Pvt Ltd
NAME OF THE RESPONDENTS	: Harsha Automobiles Pvt Ltd
UNDER SECTION	: Sec 230-232 of CA, 2013

IN THE NATIONAL COMPANY LAW TRIBUNAL,
DIVISION BENCH – II, CHENNAI

CP/CAA /33(CHE)/2022

In

CA(CAA)/38(CHE)/2021

Under Sections 230 to 232 of the Companies Act, 2013

In the matter of *Scheme of Amalgamation*

Between

M/s. HARSHA CARS PRIVATE LIMITED
Reg. Of:
D.No.142-A, Survey No.92,
Poonamallee High Road,
NoombalVelappanchavadi,
Chennai Thiruvallur-600077
...1st Petitioner /Transferor Company

With

M/s. HARSHA AUTOMOBILES PRIVATE LIMITED
Reg. Of:
D.No.142-A, Survey No.92,
Poonamallee High Road,
NoombalVelappanchavadi,
Chennai Thiruvallur-600077
...2nd Petitioner/ Transferee Company

With
Their Respective Shareholders and Creditors

CORAM

JUSTICE RAMALINGAM SUDHAKAR, PRESIDENT
ANIL KUMAR B, MEMBER (TECHNICAL)

For Petitioner: Y.Suryanarayana and Sachin Sharma,Advocates

ORDER

Per: **RAMALINGAM SUDHAKAR, MEMBER(JUDICIAL)**

1. This Joint Company Petition filed by petitioner companies Viz. Harsha Cars Private Limited and Harsha Automobiles Private Limited is coming up for admission and for fixing a date of hearing of the main Company Petition as well as for a direction in relation to publication in press to be effected and notices to be issued to the authorities concerned in relation to date of hearing of the Petition and calling for the objections, if any, to the Scheme of Amalgamation (hereinafter for brevity referred to as "SCHEME") contemplated between the Petitioner Companies. The Registered office of the Transferor Company viz. Harsha Cars Private Limited is situated at Chennai and falls within the territorial jurisdiction of NCLT, Chennai.

2. From the records, it is seen that the First Motion Application vide CA(CAA)/38(CHE)/2021 was filed by the Petitioner Companies seeking directions for dispensation of meeting of the Equity Shareholders of Petitioner Companies and Convening meeting of Secured and Unsecured Creditors of the Petitioner Companies.

3. Subsequent to the order, the second motion petition was filed on 03.02.2022is coming up before us for fixing a date of hearing as well as for other consequential directions in terms of provisions of Sections 230 to 232 of Companies Act, 2013 read with Rule 16 of the Companies (Compromise, Arrangements and Amalgamation) Rules, 2016, brought into effect and on and from 15.12.2016 and it is now hereby ordered as follows:-

(i) The date of hearing of the Petition filed by the Petitioner Companiesfor the sanction of the Scheme is fixed on **25.05.2022**.

(ii) Notice of the hearing shall be advertised in the newspapers viz., the "Business Standard", English (All India edition) and "MakkalKural", Tamil (Chennai edition) not less than 10 days before the aforesaid date fixed for hearing.

(iii) In addition to the above public notice, the Petitioner Companies shall serve the notice of the Petition on the following Authorities namely, (a) Central Government through the office of the Regional Director (Southern Region), Ministry of Corporate Affairs (MCA) (b) Registrar of Companies, Chennai, MCA (c) the jurisdictional Income Tax office having jurisdiction over the Transferor Company indicating specifically their PAN No. in the communication, (d) Official Liquidatorand other sectoral regulators, if any, who may govern the working of the Transferor companies involved in the Scheme atleast 30 days before the date fixed for hearing of the above Petition.

(iv) Further, notice shall also be served to Objector(s) or to their representative, if any, as contemplated under Sub-Section (4) of Section 230 of the Act who may have made representation and who have desired to be heard in relation to their representation along with a copy of the Petition and the Annexures filed therewith atleast 15 days before the date fixed for hearing.

(v) The Petitioner Companies shall (7 days before the date of hearing of the Petition), file an affidavit of

service in relation to paper publication effected as well as service of notices on the Authorities specified above.

(vi) Objections, if any, to the Scheme contemplated by the authorities to whom notices have been given on or before the date of hearing fixed herein may be filed, failing which it will be considered that there is no objection to the approval of the Scheme on the part of the authorities by this Tribunal and subject to other condition being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder.

(vii) The Petitioner Companies shall comply with proviso to sub section (3) of Section 232 or proviso to sub section (7) of Section 230, as may be applicable under the circumstances on or before the date fixed for hearing by filing the certificate of Company's auditor.

(viii) The next date of hearing of the Petition shall be on **25.05.2022** for the consideration of the approval of the Scheme as contemplated among the Petitioner Companies.

-Sd-
B. ANIL KUMAR
MEMBER (TECHNICAL)

-Sd-
Justice RAMALINGAM SUDHAKAR
Hon'ble PRESIDENT

Sudhir